

HOUSE No. 1571

The Commonwealth of Massachusetts

PRESENTED BY:

Erika Uytterhoeven

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to make home repair affordable and stabilize communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 1571

By Representative Uytterhoeven of Somerville, a petition (accompanied by bill, House, No. 1571) of Erika Uytterhoeven for legislation to make home repair affordable and stabilize communities. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to make home repair affordable and stabilize communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 23B of the General Laws is hereby amended by adding the following section:-

2 Section 37. (a) For the purposes of this section, the following words shall, unless the
3 context clearly requires otherwise, have the following meanings:-

4 “Affordable unit”, a unit where the rent is affordable to a tenant at or below 60 per cent
5 of the area median income adjusted for household size as defined by the executive office.

6 “Applicant”, a nonprofit or governmental entity that serves 1 or more cities or towns.

7 “Executive office”, the executive office of housing and livable communities.

8 “Habitability concern”, home repairs that are required to ensure that residential units are:

9 (i) fit for human habitation; (ii) free from defective conditions of health and safety hazards,
10 including asbestos, mold, pests and lead; or (iii) free of conditions preventing the installation of
11 measures to improve energy or water efficiency and lower utility costs.

“Small landlord”, a person who: (i) is a landlord; (ii) has an ownership stake in no more than 5 properties and no more than 15 rental units; and (iii) rents the properties or units under clause (ii) for use as a primary residence for a fee, regardless of the length or form of lease.

(b) The executive office shall establish the whole home repairs program. In administering the whole home repairs program, the executive office shall coordinate with existing federal and state resources relating to home repairs. The executive office may develop and publish guidelines to implement the whole home repairs program. The executive office and grantees may receive up to 4 per cent each for administrative costs to implement this subsection from money appropriated for the whole home repairs program. Nothing in this subsection shall be construed to prohibit an applicant that receives funds from the program under this section from subgranting the funds to another entity approved by the executive office to perform any of the purposes specified in subsection (c), (d) or (e). An applicant that subgrants the funds to another entity shall notify the executive office and the executive office shall maintain a list of the applicants and subgrantees contact information on its publicly accessible website.

(c) An applicant who receives funds from the whole home repairs program shall make grants available to homeowners whose household income does not exceed 80 per cent of the area median income and shall make loans available to small landlords renting affordable units and recorded against a residential property in a mortgage security. A single grant to a homeowner or a single loan to a small landlord may not exceed \$50,000 per owner occupied or rental unit and may be used to address habitability concerns, improve energy or water efficiency or to make units accessible for individuals with disabilities.

(d)(1) A loan to a small landlord under subsection (c) may be forgiven if: (i) the small landlord offered a 3-year extension of the lease to a tenant occupying a unit when the funds were accepted by the small landlord; (ii) annual increases in monthly rent have not exceeded 3 per cent of the base rent or the unit has been occupied by a tenant participating in the federal Housing Choice Voucher Program for a period of no less than 15 years; (iii) in the prior 15 years, the small landlord has not committed a serious violation with regard to the small landlord's rental property that the small landlord has taken no substantial steps to correct the violation; and (iv) the small landlord has maintained ownership of the unit for a period of no less than 15 years.

(2) The applicant shall recapture a loan not forgiven under this subsection.

(e) An applicant who receives funds from the whole home repairs program shall use the funds to do all of the following:

(i) administer the program under this section, including staff, implementing systems and data management tools designed to maximize enrollment in all existing home repair programs administered by nonprofit organizations, governmental entities and public utilities; and

(ii) invest in work force development programs that will connect trainees to jobs through committed employer partnerships related to improving the habitability and performance of homes, including cash stipends for trainees and costs related to the design and implementation of pre-apprenticeship, apprenticeship and publicly funded on-the-job training programs.